

Before the
FEDERAL MARITIME COMMISSION

Docket No. 2010 (F)

Simple Forwarding, Inc.

v.

China United Lines Ltd. *aka* CULines and Norton Lilly International

Motion for Extension of Time for Complainant to Respond to Respondents Response to the
Amended Complaint

Complainant Simple Forwarding Inc., by its undersigned Representative, respectfully submits this *Motion for Extension of Time to Respond to Respondents Response to the Amended Complaint* in these proceedings; as the validity of that Response is undecided as of now, and the Holiday Season has caused delays.

INTRODUCTION

This Motion for an Extension of Time allowing Complainant to Respond is submitted due to the fact that a previous *Motion to Strike Respondent CULines' December 16, 2024 Response to the Amended Complaint*, submitted on December 22, 2024 ("Motion"), has not yet been decided on by the Presiding Officer, and because of delays due to the Holiday Season.

BACKGROUND

On December 22, 2024, Complainant filed a *Motion to Strike Respondent CULines' December 16, 2024 Response to the Amended Complaint* asking that the Response submitted by Ashley Xu on behalf of CULines and Norton Lilly International be Stricken from the record, as it was procedurally unsound.

LEGAL STANDARD

Federal Rule of Civil Procedure 6(b)(1):

“(b) Extending Time.

(1) *In General.* When an act may or must be done within a specified time, the court may, for good cause, extend the time:

(A) with or without motion or notice if the court acts, or if a request is made, before the original time or its extension expires; or

(B) on motion made after the time has expired if the party failed to act because of excusable neglect.”

ARGUMENTS

1. Complainant Can Not Properly Respond As-Is

As the previous Motion has not been Decided on, Complainant can not submit a reasonably prepared and sound Response to the December 16 Response. Nor does the Complainant believe that they should be compelled to Respond to a submission that may not actually be the operating Response by the Respondents.

Granting an Extension would allow the Complainant to ensure that any Response of theirs is properly tailored to the Respondents operating submission; or to new submissions by both Respondents.

The Holiday schedule has also caused delays that have impacted all Parties, including the Complainant.

In light of the procedural delays caused by the Holiday season, as well as the pending Motion that directly impacts any Complainant Response, Complainant submits that good cause exists for extending the time to Respond. This extension would not prejudice the Respondents, as it merely allows for a reasonable adjustment in light of circumstances beyond the Complainant's control.

Accordingly, Complainant respectfully request that the Presiding Officer grant this *Motion for Extension of Time to Respond to Respondents Response to the Amended Complaint*.

CONCLUSION

For the reasons outlined above, the Complainant respectfully requests an Extension of time to respond to CULines' submitted Response by Ashley Xu, dated December 16, 2024, until a decision is made regarding which Response or Responses the Complainant should address.

DUTY TO CONFER

Pursuant to 46 C.F.R. § 502.71(a), Complainant attempted to confer with Respondents CULines and Norton Lilly International, but did not receive an answer from either Respondent.

I, Sara Dandan, have been admitted to general practice before the Federal Maritime Commission. I respectfully submit this motion on behalf of Complainant Simple Forwarding Inc.

Sara Dandan

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Signature:  _____

Date: 01/02/2025

CERTIFICATE OF SERVICE

I certify that on January 2nd, 2025, a true and current copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondents:

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